



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 21 judgments on Tuesday 9 October 2018 and 27 judgments and / or decisions on Thursday 11 October 2018.

*Press releases and texts of the judgments and decisions will be available at **10 a.m.** (local time) on the Court's Internet site (www.echr.coe.int)*

Tuesday 9 October 2018

Just satisfaction

Činga v. Lithuania (application no. 69419/13)

The case concerns the question of just satisfaction with regard to a domestic court decision ordering the applicant, Ramūnas Činga, to return to the State a plot of land on which the utilities necessary for the functioning of his house had been installed.

In its [judgment](#) on the merits of 31 October 2017 the European Court of Human Rights found a violation of Article 1 Protocol No. 1 (protection of property) to the European Convention on Human Rights.

The Court further held that the question of just satisfaction was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 9 October 2018.

Golubyatnikov and Zhuchkov v. Russia (nos. 49869/06 and 44822/06)

The applicants, Dmitriy Golubyatnikov and Sergey Zhuchkov, are Russian nationals who were born in 1979 and 1978 respectively and live in Tikhoretsk (Krasnodar region, Russia).

The case concerns their allegation that they were ill-treated in police custody in order to force them into confessing to inflicting serious head injuries on a girl who later died.

Both men allege that they were arrested in January 2005, beaten by the police with rubber truncheons and had gas masks placed over their heads to block their access to air. Mr Golubyatnikov says that he refused to confess and on the same day as his arrest was taken to hospital where he was diagnosed with multiple injuries, including fractured ribs. Mr Zhuchkov says that he ended up confessing and incriminating himself and the first applicant after two days of ill-treatment and out of fear for his life. He subsequently retracted his confession, and maintained that position at trial, pleading not guilty, as did the first applicant.

Pre-investigation inquiries have repeatedly been carried out into the applicants' complaints of police brutality. However, the prosecuting authorities have refused to institute criminal proceedings, most recently in 2016, in respect of both applicants.

The courts relied, among other evidence, on Mr Zhuchkov's confession to convict the applicants in August 2005 of causing grievous bodily harm leading to death. Mr Golubyatnikov was sentenced to 12 years' imprisonment and Mr Zhuchkov to nine years' imprisonment. In those proceedings, the courts dismissed the applicants' allegations of ill-treatment as unfounded, relying on the refusals to institute criminal proceedings against the police officers. Mr Zhuchkov's allegation of unlawful detention was dismissed for the same reason.

Relying on Article 3 (prohibition of inhuman or degrading treatment), both applicants complain that they were subjected to police ill-treatment and that the authorities failed to carry out an effective investigation into their allegations. They both further complain under Article 6 § 1 (right to a fair trial) that their convictions were unfair because they were based on evidence which Mr Zhuchkov had been coerced into giving. Mr Zhuchkov makes another complaint, alleging under Article 5 § 1 (c) (right to liberty and security) that he was detained for over a day before his arrest was officially recorded.

[Gyrlyan v. Russia \(no. 35943/15\)](#)

The applicant, Sergey Gyrlyan, is a Russian national who was born in 1972 and now lives in Odessa (Ukraine).

The case concerns the confiscation of 90,000 United States dollars (USD) from him after he failed to declare to customs that he was carrying a large amount of foreign currency.

Mr Gyrlyan sold a property in 2014 and exchanged most of the Russian rouble proceeds for USD 100,000. In March of that year he travelled with the foreign currency from Moscow's Domodedovo Airport to Odessa. After his hand luggage was X-rayed, he told security that he was carrying the money. He said that he thought customs controls, where he had to declare any sums over USD 10,000, were after the security checks.

The domestic courts eventually ordered the confiscation of USD 90,000, rejecting his appeals that the money had been obtained lawfully and that the penalty was out of proportion to the offence.

Relying on Article 1 of Protocol No. 1 (protection of property), Mr Gyrlyan complains that the confiscation was excessive and disproportionate to the legitimate aim pursued.

[Revision](#)

[Frančiška Štefančič v. Slovenia \(no. 58349/09\)](#)

The case concerns a request for revision of a judgment on the death of Frančiška Štefančič's son in the course of a police intervention intended to take him to a psychiatric hospital.

In its judgment of 24 October 2017 the Court found a violation of Article 2 (right to life) and awarded Ms Štefančič 36,000 euros (EUR) for non-pecuniary damage.

On 2 November 2017 the Government requested a revision of the judgment, which they had been unable to enforce because the applicant had died before it had been adopted.

The Court will deal with the request for revision in its judgment of 9 October 2018.

[A.K. v. Turkey \(no. 27607/11\)](#)

The applicant, A.K., is a Turkish national who was born in 1962 and lives in Istanbul (Turkey).

The case concerns a knife attack on A.K., carried out at his home by an individual (B.B.) whom he had met by chance three days earlier.

The events took place in May 2000. After a meal accompanied by large quantities of alcohol, B.B. and A.K. were left alone in the latter's apartment after two friends had left. A.K. allegedly found B.B. taking some tablets out of his pocket and putting them in A.K.'s glass. According to A.K.'s account, the tablets were illicit drugs, which he seized and threw in the bin. He alleged that B.B. then pulled off A.K.'s neck chain and stabbed him several times. A.K. subsequently underwent two medical examinations, which noted several wounds on his body. The first medical report concluded that A.K.'s life was not in danger and that he required 10 days' rest, while the second stated that he needed 15 days' rest. B.B. subsequently claimed to have used the knife in order to get away from A.K. after the latter came into his bedroom and began caressing him. He said that he had then left the apartment in a hurry, leaving his clothes and personal effects behind. Witnesses reported seeing

A.K. outside the apartment block, bleeding, and an almost naked man running away with a knife in his hand.

Two sets of criminal proceedings were brought against B.B., on charges of aggravated robbery and wounding with intent. In November 2006 he was sentenced by the Assize Court to three years and nine months' imprisonment for wounding with intent. The court acquitted him on the aggravated robbery charge. In April 2013 the Court of Cassation quashed that judgment, ruling that the prosecution for wounding with intent was time-barred, as more than seven years and six months had passed since the offence was committed. The court also quashed the decision acquitting B.B. of aggravated robbery, finding that the commission of that offence had been established. In June 2014 the Assize Court sentenced B.B. to six years and eight months' imprisonment for aggravated robbery.

Relying on Article 6 (right to a fair trial within a reasonable time) and Article 13 (right to an effective remedy) of the Convention, A.K. maintains that his attacker escaped punishment because his criminal prosecution for wounding with intent became time-barred. A.K. contends in that regard that the authorities failed in their obligation to conduct effective proceedings within a reasonable time. Lastly, he alleges a breach of the domestic-law provisions prohibiting discrimination in the conduct of an investigation, maintaining that he was discriminated against on account of his sexual orientation.

[Murat Akin v. Turkey \(no. 40865/05\)](#)

The applicant, Murat Akin, is a Turkish national who was born in 1962 and lives in Ankara.

The case concerns Mr Akin's compulsory transfer to a different post and the resulting drop in his salary. In particular, Mr Akin complains of a failure to apply the salary increases provided for under a collective agreement to the amount of his previous salary.

On 15 January 2000 Mr Akin, who had previously been employed as a head of unit in the sports lottery department of the National Youth and Sports Directorate, was moved to another post as an official within the same department. His salary dropped as a result. Mr Akin brought an action in the Ankara Employment Tribunal seeking compensation for the loss of salary resulting from his compulsory transfer. In April 2004 the Employment Tribunal found partly in his favour, ruling that if the rate of pay corresponding to the post to which an employee was transferred was lower than his or her previous rate of pay, the employee should not suffer a loss of salary. The tribunal therefore found that Mr Akin's employer should have paid him the difference between the two rates of pay in order to bring his salary in the new post up to the level of his previous salary. However, the tribunal also found that Mr Akin could not claim an increase in salary for a post which he had no longer occupied during the period in question. That judgment was upheld following an appeal on points of law.

Relying on Article 6 § 1 of the Convention and Article 1 of Protocol No. 1 to the Convention, Mr Akin alleges, in particular, a breach of his right to a fair hearing and of his property rights.

[Batkivska Turbota Foundation v. Ukraine \(no. 5876/15\)](#)

The applicant, the Batkivska Turbota Foundation, is a charity registered in Ukraine in 1999.

The case concerns the applicant organisation being deprived of its ownership of parts of a sanatorium which it bought from the property arm of Ukraine's Federation of Trade Unions in 2002.

In 2000 the applicant organisation founded a social rehabilitation centre to help young people. In August 2002, it bought parts of a sanatorium owned by UPO, an entity which had been created by the Federation to manage its properties. The applicant organisation subsequently registered its title to the property.

After court proceedings which ended in 2014, title to the premises was taken away from the applicant organisation and transferred to the State, which argued that they were State property and had never been transferred from the State to UPO. The State's title to the property was registered in April 2018. The applicant organisation is still using the facility and has children from "difficult" families there, as well as internally displaced people.

Relying on Article 1 of Protocol No. 1 (protection of property), the applicant organisation complains of a breach of its property rights.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Lekić v. Montenegro (no. 37726/11)

Corallo v. the Netherlands (no. 29593/17)

Angirov and Others v. Russia (no. 30395/06) – Revision

Aristov and Gromov v. Russia (nos. 76191/12 and 5438/13)

Azovtsev and Trifonov v. Russia (no. 13887/05)

Fakhrutdinova v. Russia (no. 5799/13)

Sergunin and Others v. Russia (nos. 54322/14, 60765/14, and 73407/14)

Iseni v. Serbia (no. 43326/11)

Knežević and Others v. Serbia (nos. 54787/16, 55000/16, 55009/16, 55034/16, 55203/16, 58557/16, and 60159/16)

Aktan v. Turkey (no. 41839/09)

Aydemir and Karavil v. Turkey (no. 16624/12)

Göktaş v. Turkey (no. 71447/11)

Gül v. Turkey (no. 14619/12)

İşik and Others v. Turkey (no. 31714/10)

Thursday 11 October 2018

Osmanyán and Amiraghyan v. Armenia (no. 71306/11)

The applicants, Suren Osmanyán, Serob Osmanyán, Bakur Osmanyán, Mane Osmanyán, and Donara Amiraghyan, are Armenian nationals who were born in 1935, 1961, 1988, 1990, and 1966 respectively and live in Teghout (Armenia).

The case concerns the expropriation of their land for mining.

The applicants jointly owned a plot of land of 0.383 hectares in the village of Teghout. In 2007 the Government decreed that various plots of land could be bought via expropriation by a private company which was to exploit a copper-molybdenum deposit in the area.

An initial appraisal valued the applicants' land at the equivalent of 409 euros (EUR) as the market value. The Teghout mining company subsequently offered EUR 470, including an additional 15% required by law, but the applicants considered the price to be too low.

The company went to court in May 2008 for an order to oblige the applicants to sign an expropriation sale agreement. Further proceedings, including more valuations, led in April 2011 to a court order of a sale price of EUR 575, which was upheld on appeal. One of the applicants' main arguments was that the valuations underestimated the value to them of fruit trees on the land.

The applicants complain that they were deprived of their property in violation of Article 1 of Protocol No. 1 (protection of property).

Mazziotti v. France (no. 65089/13)

The applicant, Mr Michael Mazziotti, is a French national who was born in 1987 and is in prison in Marseilles. The case concerns his appeal against a disciplinary measure imposed in prison.

Mr Mazziotti was remanded in custody in May 2010. Having already been convicted four times, he was committed for trial in the Assize Court. In a judgment of 15 October 2013 the Bouches-du-Rhône Assize Court sentenced him to 12 years' imprisonment for armed robbery carried out as part of a gang, aggravated assault and criminal conspiracy.

A short time previously, on 12 October 2012, while he was being held in Nice Prison, Mr Mazziotti had been found in possession of a mobile phone and a telephone chip. The prison disciplinary board ordered his confinement in a punishment cell for seven days, from 22 to 28 November 2012.

On 22 November Mr Mazziotti applied to the urgent-applications judge for a stay of execution of that decision. The application was rejected. On 27 November 2012 Mr Mazziotti appealed against that decision to the *Conseil d'État*. In an order of 14 June 2013 the *Conseil d'État* found that it was unnecessary to rule on the appeal, as the disciplinary penalty had already been enforced.

The applicant contends that his placement in a punishment cell was contrary to Article 3 (prohibition of inhuman or degrading treatment). Relying on Article 13 (right to an effective remedy), he alleges that he was unable to appeal against that decision.

Tuskia and Others v. Georgia (no. 14237/07)

The case concerns a protest by professors at their university which was broken up by the police.

The applicants, Vakhtang Tuskia, Jemal Mebonia, Maia Natadze, Tengiz Sanadze, Giorgi Gogolashvili, Medea Sikharulidze, Avtandil Arabuli, Gela Dolidze, and Demur Bakhtadze, are Georgian nationals. They were born in 1935, 1939, 1929, 1930, 1948, 1955, 1953, 1963, and 1939 respectively.

Over several months in 2006 the applicants, all professors at Tbilisi State University, held meetings on university premises to protest about ongoing reform. The protests culminated on 3 July 2006 with the applicants and 400 other protestors calling for the acting rector's resignation. The applicants submit that they went to his office but left without resistance when the police intervened.

They were subsequently found liable in administrative proceedings for violating public order at the university by forcing their way into the acting rector's office and insulting him. They were given fines. The domestic courts found in particular that the police's decision to remove the applicants from the office was to prevent further disruption and was therefore justified. They relied on statements by ten eyewitnesses, including the police and university staff. Furthermore, all but two of the applicants had disobeyed a lawful police order, because it had taken the police about one hour to negotiate with them to leave the office and to agree to continue their protest in a lecture hall.

Relying in particular on Article 10 (freedom of expression) and Article 11 (freedom of assembly and association), the applicants allege that the police's dispersal of their protest on 3 July 2006 and the related administrative proceedings were unlawful and disproportionate. They also complain under Article 6 §§ 1 and 3 (d) (right to a fair trial / right to obtain attendance and examination of witnesses) that the administrative proceedings against them were unfair because the courts' decisions were arbitrary and were taken without questioning either the acting rector or his deputy.

S.V. v. Italy (no. 55216/08)

The applicant, S.V., is an Italian national who was born in 1965 and lives in Ostia Lido (Italy).

The case concerns the Italian authorities' refusal to change a transgender person's forename on the grounds that no final judicial ruling had been given confirming the person's gender reassignment.

At birth, S.V. was entered in the civil-status registers as male and was given the forename L. However, having always identified as female, the applicant lived in society as a woman under the forename S. In particular, her work colleagues had called her S. since 1999, and in the photograph on her identity card issued in 2000 her appearance was that of a woman.

In 1999 S.V. began treatment with feminising hormones as part of the gender transition process. The Rome District Court subsequently authorised the applicant to undergo gender reassignment surgery. In 2001, while waiting for the operation, S.V. applied to the prefect of Rome for a change of forename, stating that in view of her physical appearance, the fact that her identity papers contained a male forename was a permanent source of humiliation and embarrassment. The prefect refused the request on the grounds that, in the absence of a final judicial ruling confirming the gender reassignment (Law no. 164 of 1982), the applicant's forename could not be changed. As a result, S.V. had to wait until the court confirmed that the surgery, carried out on 3 February 2003, had been performed and the court gave a final ruling on her gender identity. Following the District Court judgment of 10 October 2003 the Savona municipal authorities changed the indication of S.V.'s gender and her forename.

Relying on Article 8 (right to respect for private family life) and Article 14 (prohibition of discrimination), S.V. complains about the prefect's refusal of her request to change her forename on the grounds that she had not yet undergone gender reassignment surgery and that no final judicial decision had been given in that regard.

[Parol v. Poland \(no. 65379/13\)](#)

The applicant, Albert Parol, is a Polish national who was born in 1978 and is currently in prison in Warsaw.

The case concerns the application by the domestic courts of the procedural provisions of the national legislation on lodging appeals.

In July 2011 Mr Parol brought an action in the Warsaw-Praga Regional Court ("the Regional Court") against four prisons, seeking compensation on account of his conditions of detention. In June 2012 the Regional Court dismissed his action as being time-barred. In November 2012 the applicant appealed against that judgment. In a letter of 20 November 2012 the Regional Court requested Mr Parol to rectify some formal defects in his appeal. It requested him, in particular, to submit a copy of the appeal and of his memorial rectifying the formal defects. In order to comply, the applicant requested the Regional Court to send him a copy of his appeal at his own expense. No action was taken.

In December 2012 Mr Parol submitted a handwritten copy of his appeal to the Regional Court, together with the other documents requested. At the end of December 2012 the Regional Court declared the applicant's appeal inadmissible on the grounds that the copy of the appeal submitted was not identical to the original. In July 2013 the Warsaw Court of Appeal ("the Court of Appeal") dismissed an appeal by the applicant against the decision of December 2012, noting that appeals had to be submitted in duplicate so that they could be served on the respondent. In October 2013 the Court of Appeal declared the applicant's appeal against the decision of July 2013 to be inadmissible, on the grounds that the decision in question was not open to appeal.

Relying on Article 6 § 1 (right of access to a court), the applicant complains of a violation of his right of access to a court on account of the dismissal of his appeal against the Regional Court judgment of June 2012 as being inadmissible, following what he regards as an unduly restrictive application by the domestic courts of the relevant procedural provisions.

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Beeckman and Others v. Belgium (no. 34952/07)
Majcan v. Croatia (no. 45366/14)
FC Mretebi v. Georgia (no. 22523/09)
Shavlokhova v. Georgia (no. 4800/10)
Y v. Georgia (no. 44331/10)
Lembergs v. Latvia (no. 62323/17)
Bandalac v. the Republic of Moldova (no. 17709/14)
Bondarenco v. the Republic of Moldova (no. 58144/09)
Cinchivshi v. the Republic of Moldova (no. 35102/12)
Versilov v. the Republic of Moldova and Russia (no. 28750/11)
Dmitriyev and Abramov v. Russia (nos. 36651/05 and 11054/06)
Namazov and Alekseyeva v. Russia (no. 68921/13)
Nosov v. Russia (no. 26668/09)
Bladt v. Switzerland (no. 37946/13)
Pfurtscheller v. Switzerland (nos. 13568/17 and 13583/17)
Aydemir v. Turkey (no. 46928/12)
Bayar v. Turkey (no. 87/09)
Doğanşahin and Others v. Turkey (nos. 68245/11 and 73729/11)
İçelli and Others v. Turkey (no. 68355/11)
Karagöz v. Turkey (no. 69885/12)
Kurt v. Turkey (no. 9763/12)
Törel v. Turkey (no. 37398/05)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.